

Shathya Sheela W/O Late Shivshankar ... vs Superintendent Engineer And Ors on 23 July, 2024

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NC: 2024:KHC-K:5211-DB
WA No.200164 of 2021

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 23RD DAY OF JULY, 2024

PRESENT

THE HON'BLE MR N. V. ANJARIA, CHIEF JUSTICE
AND

THE HON'BLE MR JUSTICE ASHOK S. KINAGI

WRIT APPEAL NO.200164 OF 2021 (S-RES)

BETWEEN:

SMT. SHATHYA SHEELA
W/O LATE SHIVSHANKAR INGANKAL,
AGED ABOUT 31 YEARS,
R/AT MANNEKEDA VILLAGE,
TQ: HUMNABAD,
DISTRICT: BIDAR - 585 401.

...APPELLANT

(BY SRI V.K. NAYAK, ADVOCATE)

AND:

Digitally signed by
BASALINGAPPA
SHIVARAJ
DHUTTARGAON
Location: HIGH
COURT OF
KARNATAKA

1. SUPERINTENDENT ENGINEER
O AND M GESCOM,
BIDAR, DIST: BIDAR - 585 401.
2. EXECUTIVE ENGINEER
O AND M GESCOM,
HUMNABAD, TQ: HUMNABAD,
DIST: BIDAR - 585 101.
3. ASSISTANT EXECUTIVE ENGINEER (V)
O AND M GESCOM,
SUB DIVISION, MANNAKKALLI,

TQ: HUMNABAD, DIST: BIDAR - 585 401.

4. SMT. JAYASHREE
W/O LATE SHIVASHARANAPPA,
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AGED ABOUT 50 YEARS,
OCC: HOUSE WIFE,
R/AT: MANNEKHELLI VILLAGE,
TQ: HUMNABAD,
DISTRICT BIDAR - 585 401.

...RESPONDENTS

(BY SRI RAVINDRA REDDY, ADVOCATE FOR R1 TO R3;
VIDE ORDER DATED 06.06.2022
RESPONDENT NO.4 DIED AND THERE ARE
NO LEGAL REPRESENTATIVES OF R4)

THIS WRIT APPEAL IS FILED UNDER SECTION 4 OF THE
KARNATAKA HIGH COURT ACT, PRAYING TO ISSUE:

1. SET ASIDE THE ORDER / JUDGMENT DATED 11.03.2020,
PASSED IN WRIT PETITION NO.201691/2018.
2. QUASH THE IMPUGNED ENDORSEMENT DATED 17.03.2017
BEARING NO.HU/KANIAA(V)/LAAA)SALAAA/HISA/(SA)/16-
17/9956 FOUND AT ANNEXURE-J ISSUED BY THE 2ND
RESPONDENT.
3. DIRECT RESPONDENTS NO.1 TO 3 TO CONSIDER THE
APPLICATION OF THE PETITIONER DATED 08.01.2015
SEEKING COMPASSIONATE APPOINTMENT FOUND AT
ANNEXURE-C IN THE LIGHT OF THE JUDGMENT OF THIS
HONBLE COURT DATED 24.06.2021 IN W.A.NO.2495/2019
AND ALSO JUDGMENT DATED 05.09.2017 IN
W.P.NO.57779/2019 IN SMT.T.H.ASHALATHA VS. THE
COMMISSIONER DIRECTORATE OF MUNICIPAL
ADMINISTRATION.
4. AND GRANT SUCH OTHER OR FURTHER RELIEF OR
RELIEFS AS THIS HON'BLE COURT MAY DEEM FIT IN THE
CIRCUMSTANCES OF THE CASE.

THIS WRIT APPEAL COMING ON FOR ORDERS, THIS
DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE THE CHIEF JUSTICE MR.JUSTICE
N. V. ANJARIA,
and

HON'BLE MR. JUSTICE ASHOK S. KINAGI

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WA No.200164 of 2021

ORAL JUDGMENT

(PER: HON'BLE THE CHIEF JUSTICE MR. JUSTICE N.V. ANJARIA) Heard learned advocate Mr.V.K.Nayak, for the appellant and learned advocate Mr.Ravindra Reddy, for the respondents.

2. The challenge in this appeal filed under Section 4 of the Karnataka High Courts Act, 1961 is directed against judgment and order dated 11.03.2020 of learned Single Judge whereby the petition came to be dismissed and the petitioner was denied the prayer of seeking appointment on compassionate basis.

3. Admittedly, the petitioner happens to be the second wife of the deceased employee who died in the year 2014. Learned Single Judge reasoned that the second marriage was not to be the lawful when contracted during the subsistence of first marriage and that there was no legal status acquired or legitimacy possessed by the second wife to claim the benefit.

3.1 Learned Single Judge relied on decision of the Division Bench of this Court in Writ Appeal No.442/2010 disposed of on 29.08.2013 in Sri.K.Mahehsa vs. The Managing Director, Karnataka Power Transmission Corporation Limited and Others and on the basis of observations made in the said case NC: 2024:KHC-K:5211-DB inter alia that the second marriage while the first spouse living is held to be void under Section 5(1) of Hindu Marriage Act, 1955 and it was further stated that the legitimacy of the children of the void marriages is only for the purpose of claiming right in the property.

4. The decision of the Division Bench of this Court in K.Santhosha vs. The Karnataka Power Transmission Corporation Limited in Writ Appeal No.2495 of 2019 disposed of on 24.06.2021 was relied on by the learned advocate for the appellant. In that case, facts were entirely different and the applicant who was seeking compassionate appointment was the son born out of second wife. The whole context and facts could not be applied to the facts of this case.

5. While this Court is in broad agreement with the reasons supplied by the learned Single Judge to treat the petitioner-second wife not entitled to benefit of compassionate appointment, it could be noticed that the entire claim of the petitioner to be appointed on compassionate basis was founded on a compromise decree entered into in the proceedings of Original Suit No.156 of 2014 whereby it was agreed between the family members including first wife to provide compassionate appointment to second wife and the NC: 2024:KHC-K:5211-DB benefit of pension etc., were also to be received for the benefit of children.

5.1 It is to be held that a compromise decree or settlement arrived at cannot determine the eligibility to be appointed on compassionate basis. In order to seek the claim for appointment on compassionate basis, the case of the claimant has to fall within the four corners of the policy for compassionate appointment. Merely because the parties have arrived at a settlement and agreed in a particular way, that would not by itself confer right on the petitioner to make it enforceable right to seek for appointment on compassionate basis, if otherwise he or she is not entitled to. 5.2 The provisions of Section 5(1) of the Hindu Marriage Act, prohibits second marriage during lifetime of legally wedded wife. The petitioner and respondent No.4 have entered into a compromise in the suit in Original Suit No.156 of 2014. The said compromise is contrary to Section 5(1) of the Hindu Marriage Act. Any agreement is forbidden by law, it is void as per Section 23 of the Indian Contract Act, 1872.

6. Not only this, it is trite principle that getting compassionate appointment is never a right which could be claimed independent of NC: 2024:KHC-K:5211-DB other aspects. The object of compassionate appointment is to help the family tide over during the time of immediate crises when the bread earner in the family dies. In the instant case, the deceased husband died in the year 2014, ten years have passed. The very fact that the petitioner could survive for ten years would suggest that she is not dependent. Even otherwise, there is nothing on record to suggest that the petitioner-second wife was economically dependent on the deceased employee husband or that she was residing with the husband.

6.1 In addition to what is held by the learned Single Judge, for all the aforesaid reasons, no case is made out requiring this Court to exercise its appellate jurisdiction and interfere in the order of learned Single Judge. The appeal stands meritless and the same is dismissed.

Sd/-

(N.V. ANJARIA) CHIEF JUSTICE Sd/-

(ASHOK S. KINAGI) JUDGE VNR,BL Ct:VK